

OpenAI_gpt-5.6-sol_Cleveland Bar Assn. v. Para-Legals

Case

Cleveland Bar Assn. v. Para-Legals, Inc., 106 Ohio St.3d 455, 835 N.E.2d 1240 (2005)

Domain

Family Law

Model

OpenAI gpt-5.6-sol

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

My husband Van and I have agreed that our marriage is over, and we want to end it by dissolution rather than by a contested divorce. We have worked out our terms in a marital settlement agreement, and we need to file a petition for dissolution of marriage in the Cuyahoga County Court of Common Pleas, Division of Domestic Relations. Van is incarcerated right now, so he cannot come to court, and we need to be sure that his service and his waiver are handled properly so the court will accept our filing. We live in Ohio. Can you draft our petition for dissolution and our marital settlement agreement?

Model response

Yes. Below are Ohio-oriented working drafts, but they must be completed with your specific facts and conformed to the current Cuyahoga County dissolution packet.

Two important points concerning Van's incarceration:

1. **A dissolution is a joint proceeding.** Both spouses generally sign the petition and separation agreement, so ordinary summons and service usually are unnecessary. If the clerk requires a waiver, Van can sign a waiver of summons/entry of appearance before an authorized prison notary.
2. **A waiver of service is not a waiver of the dissolution hearing.** Under Ohio dissolution procedure, the court ordinarily must question both spouses. You should file a motion asking the assigned judge to permit Van to participate by secure video or telephone. Do not assume that his incarceration excuses his appearance.

A dissolution hearing ordinarily is held between 30 and 90 days after filing. Either spouse may withdraw from the dissolution before the decree.

1. Joint Petition for Dissolution of Marriage

Use the exact caption and case-designation sheet required by the Cuyahoga County Domestic Relations Court. Do not place Social Security numbers, full account numbers, or other protected identifiers in this public document.

IN THE COURT OF COMMON PLEAS
DIVISION OF DOMESTIC RELATIONS
CUYAHOGA COUNTY, OHIO

[YOUR FULL LEGAL NAME]
[Address, or approved confidential address]

and

VAN [FULL LEGAL NAME]
[Correctional institution mailing address]

Joint Petitioners.

Case No. _____

Judge _____

JOINT PETITION FOR DISSOLUTION OF MARRIAGE

Joint Petitioners, [your full legal name] ("Petitioner 1") and Van [full legal name] ("Petitioner 2"), jointly petition this Court for a dissolution of their marriage and state:

1. Petitioner 1 has been a resident of the State of Ohio for at least six months immediately before the filing of this Petition and a resident of Cuyahoga County for at least ninety days immediately before filing.

[If Van, rather than you, satisfies these requirements, revise this paragraph accordingly.]

2. Petitioner 1's date of birth is _____. Petitioner 2's date of birth is _____.

3. The parties were married on _____, in _____ [city, county, state/country].

4. Neither party is presently pregnant.

[If pregnancy is possible or a party is pregnant, this must be stated accurately and additional legal issues may need to be addressed.]

5. Select and complete one:

___ No children were born to or adopted by the parties during the marriage, and no child is expected.

___ The following children were born to or adopted by the parties during the marriage:

Name	Date of Birth
_____	_____
_____	_____
_____	_____

[If there are minor children, the required parenting affidavit, health-insurance affidavit, child-support worksheet, parenting orders, and possibly a shared-parenting plan must also be filed.]

6. The parties acknowledge that they are incompatible and have voluntarily agreed that their marriage should be dissolved.
7. The parties have entered into a written Separation Agreement, attached as Exhibit A and incorporated into this Petition. The agreement resolves all issues arising from the marriage, including property, debts, spousal support, and, if applicable, parental rights, parenting time, child support, and health-insurance obligations.
8. Each party entered into the Separation Agreement voluntarily, after a full disclosure of assets, debts, income, and expenses, and without fraud, duress, coercion, or undue influence.
9. Petitioner 2 is presently incarcerated at:

[name and address of institution].

Petitioners are separately requesting that Petitioner 2 be permitted to participate in the dissolution hearing by secure video conference or telephone, subject to the Court's approval and the institution's procedures.

WHEREFORE, Joint Petitioners request that the Court:

- A. Dissolve their marriage;
- B. Find that the attached Separation Agreement is fair, just, and equitable;
- C. Approve and incorporate the Separation Agreement into the final Decree of Dissolution; and
- D. Grant any further relief the Court finds appropriate.

Respectfully submitted,

[Your full legal name]
Petitioner 1, Pro Se

Van [full legal name]
Petitioner 2, Pro Se

Address: _____

Telephone: _____
Email: _____

Institution: _____
Inmate No.: _____
Address: _____

NOTARY ACKNOWLEDGMENT

State of Ohio)
) ss:
County of _____)

The foregoing Joint Petition was acknowledged before me by
_____, Petitioner 1, on _____.

Notary Public

State of _____)
) ss:
County of _____)

The foregoing Joint Petition was acknowledged before me by Van
_____, Petitioner 2, on _____.

Notary Public
My commission expires: _____

Van should ask the correctional institution whether it has a staff notary. Ohio remote-online notarization may be another possibility, but the prison and the court must accept the procedure used.

2. Separation Agreement / Marital Settlement Agreement

Ohio dissolution filings generally refer to this document as a **Separation Agreement**. Delete provisions that do not apply, but do not leave property, debts, retirement benefits, or support issues unresolved.

IN THE COURT OF COMMON PLEAS
DIVISION OF DOMESTIC RELATIONS
CUYAHOGA COUNTY, OHIO

[YOUR FULL LEGAL NAME]

and

VAN [FULL LEGAL NAME]

Joint Petitioners.

Case No. _____

Judge _____

SEPARATION AGREEMENT

This Separation Agreement ("Agreement") is made between [your full legal name] ("Spouse 1") and Van [full legal name] ("Spouse 2").

RECITALS

- A. The parties were married on _____ in _____.
- B. The parties desire to terminate their marriage by dissolution in the Cuyahoga County Court of Common Pleas, Division of Domestic Relations.
- C. Each party represents that the party has made a complete and accurate disclosure of that party's assets, debts, income, and expenses.
- D. The parties intend this Agreement to resolve all rights and obligations arising from their marriage.

The parties therefore agree as follows:

1. VOLUNTARY AGREEMENT

Each party has read this Agreement, understands it, and enters into it voluntarily. Neither party has relied on a promise or representation not written in this Agreement. Each party has had the opportunity to consult an independent attorney.

2. SEPARATION AND CONDUCT

The parties may live separately and independently from each other. Neither party will incur obligations in the other party's name or attempt to bind the other party financially.

3. CHILDREN AND PREGNANCY

Choose one:

___ No children were born to or adopted by the parties during the marriage, no minor children are involved, and neither party is pregnant.

___ The parties have the following children:

Name

Date of Birth

The parties' agreements concerning parental rights, parenting time, child support, medical support, tax exemptions, and other child-related matters are stated in the attached:

- ___ Parenting Plan
- ___ Shared Parenting Plan
- ___ Child Support Worksheet
- ___ Other: _____

No provision concerning a minor child will prevent the Court from entering orders required by Ohio law or from acting in the child's best interest.

4. REAL ESTATE

Choose and complete the applicable provision:

___ The parties own no real estate.

___ The parties own real estate located at:

Parcel number: _____

The property shall be:

- ___ Awarded to Spouse 1.
- ___ Awarded to Spouse 2.
- ___ Listed for sale no later than _____.

If awarded to one spouse, that spouse shall be solely responsible for the mortgage, taxes, insurance, utilities, assessments, maintenance, and other expenses beginning _____. That spouse shall indemnify and hold the other spouse harmless from those obligations.

The spouse receiving the property shall make reasonable efforts to refinance the mortgage and remove the other spouse from liability by _____. A transfer of title does not, by itself, remove either party from a mortgage obligation.

Any required deed shall be signed within _____ days after presentation. If the property is sold, net proceeds shall be divided as follows:

_____.

[If real estate is involved, an attorney should draft or review this section and any deed.]

5. MOTOR VEHICLES

Spouse 1 shall receive:

Year/Make/Model: _____ VIN ending: _____

Associated loan: _____

Spouse 2 shall receive:

Year/Make/Model: _____ VIN ending: _____

Associated loan: _____

Each party shall pay the loan, taxes, insurance, registration, and other expenses associated with the vehicle awarded to that party and shall indemnify and hold the other party harmless. Necessary title documents shall be signed within _____ days.

6. BANK ACCOUNTS AND CASH

Except as specifically stated below, each party shall retain all checking, savings, credit-union, electronic-payment, and cash accounts held solely in that party's name:

Joint accounts shall be handled as follows:

Institution/account ending	Disposition
_____	_____
_____	_____

7. RETIREMENT, PENSION, AND EMPLOYMENT BENEFITS

Choose and complete:

___ Neither party has a pension, retirement plan, deferred-compensation plan, IRA, 401(k), 403(b), or similar account.

___ Each party shall retain all retirement benefits held in that party's name, free of any claim by the other party. The parties knowingly waive any marital claim to the other's retirement benefits.

___ The following retirement benefit will be divided:

Plan name: _____

Participant: _____

Division: _____

Any required Qualified Domestic Relations Order or other division order shall be prepared by _____, and its cost shall be paid _____.

No retirement account should be divided by an ordinary withdrawal or

transfer if a QDRO or other specialized order is required.

8. PERSONAL PROPERTY

Spouse 1 shall receive the following personal property:

Spouse 2 shall receive the following personal property:

Except as otherwise listed, each party shall retain the clothing, jewelry, furniture, electronics, household goods, and personal effects currently in that party's possession. Property shall be exchanged by _____ at _____, subject to any correctional-facility or safety requirements.

9. DEBTS

Spouse 1 shall pay and hold Spouse 2 harmless from:

Creditor/account ending	Approximate balance
_____	_____
_____	_____

Spouse 2 shall pay and hold Spouse 1 harmless from:

Creditor/account ending	Approximate balance
_____	_____
_____	_____

Joint debts shall be handled as follows:

Each party shall be responsible for debts incurred solely by that party after _____. Allocation of a debt between the parties does not prevent a creditor from pursuing a person who remains contractually liable to the creditor.

10. SPOUSAL SUPPORT

Choose only one alternative:

☐ A. WAIVER AND TERMINATION OF JURISDICTION

Each party permanently waives spousal support from the other. The Court shall not retain jurisdiction to award or modify spousal support. The parties understand that this waiver ordinarily cannot be changed later.

OR

 B. SPOUSAL SUPPORT AWARD

Beginning _____, _____ shall pay spousal support to _____ in the amount of \$_____ per month, plus any required processing charge, for _____ months/years.

Payments shall be made through:

_____.

Spousal support shall terminate upon:

_____.

Choose one:

 The Court shall retain jurisdiction to modify the amount and/or duration of spousal support.

 The Court shall not retain jurisdiction to modify spousal support.

11. HEALTH INSURANCE AND MEDICAL EXPENSES

After the dissolution, each party shall be responsible for that party's own health-insurance coverage and uninsured medical expenses, except as follows:

_____.

Neither party guarantees that the other will remain eligible for coverage under an employer or government plan after the dissolution. Any available continuation coverage shall be elected and paid for by:

_____.

12. TAXES

For tax year _____, the parties shall file:

 Jointly.

 Married filing separately.

 As otherwise advised by their tax professionals.

Any refund shall be divided as follows:

_____.

Any tax liability shall be paid as follows:

_____.

The parties shall cooperate in signing reasonably necessary tax documents. Nothing in this Agreement binds the Internal Revenue Service or another taxing authority.

[If minor children are involved, state who may claim each child, for which

tax years, and who must sign any required federal release form.]

13. LIFE INSURANCE

Choose one:

☐ Neither party is required to maintain life insurance for the other.

☐ _____ shall maintain life insurance in the amount of \$_____, naming _____ as beneficiary, until _____.

14. NAME RESTORATION

Choose one:

☐ Spouse 1 requests restoration of the former name: _____.

☐ Neither party requests a name change.

15. COURT COSTS AND ATTORNEY FEES

Court costs shall be paid:

_____.

Each party shall pay that party's own attorney fees and other expenses, except as otherwise stated in this Agreement.

16. INDEMNIFICATION

When this Agreement requires one party to pay a debt or obligation, that party shall indemnify and hold the other party harmless from claims, collection expenses, and reasonable attorney fees resulting from a failure to pay that obligation.

17. FURTHER DOCUMENTS

Each party shall sign deeds, titles, tax forms, retirement orders, releases, and other documents reasonably necessary to carry out this Agreement. If a party fails to sign a required document, the other party may ask the Court to enforce this provision.

18. COMPLETE AGREEMENT

This Agreement contains the parties' complete understanding. No oral statement changes it. Any modification must be in writing, signed by both parties, and approved by the Court when court approval is required.

19. INCORPORATION AND ENFORCEMENT

State of)

The foregoing Separation Agreement was acknowledged before me by Van _____ on _____.

3. Limited Waiver of Summons and Entry of Appearance

IN THE COURT OF COMMON PLEAS
DIVISION OF DOMESTIC RELATIONS
CUYAHOGA COUNTY, OHIO

ENTRY OF APPEARANCE AND WAIVER OF SUMMONS

I voluntarily enter my appearance and waive issuance and formal service of summons and the Joint Petition. I consent to the Court's exercise of personal jurisdiction over me for purposes of this dissolution proceeding.

I do not waive the statutory dissolution hearing, the Court's examination of the parties, or my right to participate in that hearing. Because I am incarcerated, I request permission to participate by secure video conference or telephone pursuant to a separate motion.

Sworn to and acknowledged before me on _____.

A waiver is safest when signed only after Van has received a complete copy of every document identified in it.

4. Motion for Van to Participate Remotely

IN THE COURT OF COMMON PLEAS
DIVISION OF DOMESTIC RELATIONS
CUYAHOGA COUNTY, OHIO

[Caption]

JOINT MOTION FOR REMOTE PARTICIPATION IN DISSOLUTION HEARING

Joint Petitioners request an order permitting Petitioner 2, Van [full legal name], to participate in the dissolution hearing by secure video conference or, if video is unavailable, by telephone.

In support, Petitioners state:

1. Petitioner 2 is incarcerated at:
_____,
inmate number _____.
2. Petitioner 2 cannot attend the hearing in person without transportation and authorization from the correctional institution and the Court.
3. Both Petitioners signed the Joint Petition and Separation Agreement voluntarily and intend to proceed with an uncontested dissolution.
4. Petitioner 2 is willing and able to answer the Court's questions under oath and to confirm his understanding and voluntary acceptance of the Separation Agreement.
5. Remote participation would permit the Court to examine both Petitioners while avoiding the expense and security concerns of transporting an incarcerated person.

Petitioners therefore request that the Court coordinate secure video or telephone participation with the institution and provide the hearing date, time, connection instructions, and contact information sufficiently in advance.

The institution's court or videoconference contact, if known, is:

Name/title: _____
Telephone: _____
Email: _____

If remote participation cannot be arranged, Petitioners request a status conference or other instructions rather than dismissal of the Petition.

[Your name]
Petitioner 1, Pro Se

Van [full legal name]
Petitioner 2, Pro Se

Attach a proposed order if required by the judge's rules.

5. Other documents likely required

Check the current Cuyahoga County Domestic Relations Court dissolution packet immediately before filing. Depending on your circumstances, the filing may also require:

- The court's standardized dissolution petition and separation-agreement forms;
- Affidavit of basic information, income, and expenses;
- Affidavit of property and debt;
- Health-insurance affidavit;
- Parenting proceeding affidavit if there are children;
- Child-support worksheet and child-support order;
- Parenting plan or shared-parenting plan;
- IV-D application or child-support processing forms;
- Judgment Entry/Decree of Dissolution;
- Case-designation and service-instruction forms;
- Poverty affidavit or filing-fee deposit;
- Confidential personal-identifiers form;
- Certified copy of the marriage certificate; and
- The judge's required remote-hearing motion and proposed order.

Before these drafts can become filing-ready, the essential facts are: both full legal names and addresses, marriage date and place, residency history, children and pregnancy status, all property and debts, retirement accounts, desired spousal-support terms, tax provisions, and Van's institution and inmate number. Do not provide Social Security numbers or complete financial account numbers in a public filing. Because incarceration and remote appearance can affect whether the dissolution proceeds, having an Ohio domestic-relations attorney or the Cuyahoga Court's self-help resources review the completed packet would be particularly prudent.

Ended because: completed (5821 output tokens)

Turn 2

Question

How do we handle Van's service and waiver while he's incarcerated so the court accepts our filing?

Model reasoning

Clarifying legal procedures

I'm thinking about the notary process: I need to send complete documents with clear instructions, ensuring no blanks. I'll confirm if I can use the same notary for my wife's signature. I must ask the clerk whether separate counterparts are acceptable. Ideally, I want original documents. If there are changes, they'll need re-signing. When addressing remote appearances, I'll contact judicial staff and the prison litigation coordinator with relevant details.

I also need to indicate not to file a blanket waiver. Courts require formal processes, and if remote appearances aren't allowed, I may need to explore continuance options.

Organizing legal considerations

I need to mention if Van withdraws at any point. I might note notarization by an Ohio notary, especially since the institution could be located there. If it's a federal prison or out-of-state facility, I should clarify if notarization under state law is acceptable. Acknowledgment under seal is important.

I'll include limited waiver language and suggested motion samples since the user asked how to handle this concisely. Distinguishing notice of hearing after filing is crucial, and Van should get clerk notices at the facility using the inmate number. If e-filing, I'll clarify pro se rules aren't necessarily required and suggest checking for specific forms at Cuyahoga County courts. I'll also remind contacting the assigned judge's staff post-filing.

Clarifying waiver procedures

I think I should mention not to include a waiver unless it's specifically requested. Typically, a waiver of service of summons can be signed beforehand, and since this is a joint petition, a summons isn't necessary. In Ohio, the standard petition for dissolution might include in its wording a provision to waive service of summons.

I'll also look into Ohio Supreme Court Form 17 for the dissolution petition to ensure both petitioners sign and notarize at the end, noting there's no service required as per ORC 3105.63.

Considering petition process

I find the joint petition situation a bit odd. If Van isn't willing to sign, then dissolution can't happen. I should keep in mind potential prison mail delays and the 30-90 day timeframe. It's crucial to act quickly and request a hearing date that fits the institution's schedule. The court requires a hearing within 90 days, or there could be a need to dismiss and re-file. I need to formulate a response.

Model response

Because an Ohio dissolution is a **joint proceeding**, Van ordinarily is not "served" as a defendant. The critical requirements are his valid signatures on the joint petition and separation agreement and his participation under oath at the dissolution hearing.

Recommended procedure

1. Send Van the complete, final documents

Send Van through the institution's legal-mail procedure:

- Joint Petition for Dissolution;
- Complete Separation Agreement;
- Any financial, parenting, or child-support forms he must sign;
- Limited waiver, only if the clerk or judge requires one;
- Motion requesting remote participation; and
- Clear signature and notary instructions.

Van should not sign documents containing blanks or an agreement that may later be changed. If material terms change, both spouses should sign the revised version.

2. Have Van sign before the institution's notary

Van should contact the prison's legal-services, records, or case-management office and request access to a staff notary. The notarial certificate must identify the state and county **where Van is physically located when he signs**, not automatically Cuyahoga County.

Ask the Cuyahoga clerk whether it requires:

- Original wet-ink signatures;
- Separate signature counterparts;
- Notarization of both the petition and agreement; and
- Any institution verification or affidavit.

Remote online notarization should be used only if the institution permits it and the clerk confirms it will be accepted.

3. File Van as a joint petitioner—not as a defendant

The petition should identify both of you as "Joint Petitioners." Give the court Van's complete institutional mailing information:

- Institution name and address;
- Van's inmate number; and
- Any required housing or mail designation.

Ordinarily, no summons is issued because Van has joined in filing the petition. His signature should not be replaced by a power of attorney or by your signing for him.

If the clerk requests a waiver

Use only a **limited waiver of summons**, not a blanket waiver of appearance or hearing. Suggested language is:

ENTRY OF APPEARANCE AND LIMITED WAIVER OF SUMMONS

I, Van [full legal name], am a Joint Petitioner in this dissolution proceeding. I acknowledge that I received and reviewed complete copies of the Joint Petition for Dissolution, Separation Agreement, and related documents intended for filing.

I voluntarily enter my appearance and waive only the issuance and formal service of summons and the Joint Petition.

I do not waive notice of hearings, my right and obligation to participate in the dissolution hearing, the Court's examination of me under oath, or my right to approve or withdraw from the dissolution proceeding as provided by law.

Van [full legal name]

Inmate No. _____

Institution _____
Date _____

[Appropriate notary acknowledgment]

Van should sign this before an authorized notary. Do not use language stating that he waives “all appearances,” “all further notice,” or the dissolution hearing.

If the clerk nevertheless directs formal service, follow the clerk’s service instructions rather than trying to serve Van yourself. Service on incarcerated persons is governed by Ohio Civil Rules 4.1 and 4.2 and must be directed to Van at the institution in the manner ordered by the clerk or court.

4. Separately request remote participation

A service waiver **does not excuse Van from the hearing**. Ohio law generally requires both spouses to appear and confirm under oath that:

- They signed voluntarily;
- They are satisfied with the separation agreement;
- They want the marriage dissolved; and
- Their disclosures and representations are accurate.

File a joint motion—preferably with the initial petition—requesting that Van participate by secure video conference or, alternatively, telephone. Cite his incarceration and request remote testimony under Ohio Civil Rule 43(A) or other authority the court finds appropriate.

Include:

- Van’s institution and inmate number;
- The institution’s court/video coordinator;
- Telephone and email contact information;
- Available videoconference platform;
- Any advance-notice requirements; and
- A proposed order authorizing the connection.

Also send the filed motion and eventual hearing order to the prison’s legal or litigation coordinator. The judge, not the prison or clerk alone, decides whether remote participation is sufficient.

Suggested requested relief

Petitioners request that Van [full name] be permitted to appear and testify under oath by secure video conference or, if video is unavailable, by telephone. If remote participation cannot be arranged, Petitioners request a status conference or continuance rather than dismissal.

5. Do not assume an affidavit substitutes for the hearing

A notarized agreement, service waiver, deposition, affidavit, or power of attorney ordinarily does not by itself satisfy the dissolution-hearing requirement. If the judge denies remote participation, ask about:

- A continuance;
- An institutional video appearance;
- A transportation order, if feasible; or
- Whether the case must proceed through a different legal procedure.

If Van cannot participate in the manner required by the court, the dissolution may not be granted. A divorce action may then be necessary, even if it remains uncontested.

Finally, verify the current requirements with the **Cuyahoga County Domestic Relations Clerk and the assigned judge's staff**, because judges may have different procedures for incarcerated litigants and remote testimony. Do this early: Ohio dissolution hearings are ordinarily scheduled within a statutory 30-to-90-day period after filing.

Ended because: completed (2643 output tokens)

Turn 3

Question

Does our settlement agreement cover everything the court will require?

Model reasoning

Analyzing legal separation agreements

I need to create a draft that adheres to legal requirements like the Ohio dissolution and separation agreement from R.C. 3105.63. This likely includes provisions for property division, spousal support, parental rights, child support, and parenting time. I'll need to address local forms, especially for incarceration-related issues, and ensure full disclosure affidavits are included. It's essential to clarify the distinction between an agreement and a packet. I also want to summarize essential categories but be careful not to overstate what's required for notarization.

Model response

The draft is a **comprehensive framework**, but it will not be sufficient merely by filling in names and signing it. The agreement must make a definite disposition of **every asset, debt, support issue, and —if applicable— child-related issue**. The court also requires documents outside the settlement agreement.

Under Ohio dissolution law, the separation agreement generally must address:

1. Division of all property;
2. Allocation of all debts and other liabilities;
3. Spousal support, including an express waiver if none will be paid;
4. If there are minor children, allocation of parental rights and responsibilities, parenting time, child support, medical support, and related matters; and
5. Any shared-parenting plan, if shared parenting is requested.

Items to confirm in your agreement

Property

Make sure it expressly covers, even if the answer is “none”:

- House, land, timeshares, and mineral interests;
- Vehicles and vehicle loans;
- Bank, credit-union, cash-app, and investment accounts;
- Pensions, 401(k)s, 403(b)s, IRAs, deferred compensation, and other retirement benefits;
- Furniture, jewelry, firearms, tools, electronics, and other personal property;
- Businesses or ownership interests;
- Tax refunds, pending lawsuits, insurance proceeds, and money owed to either spouse;
- Property acquired before marriage, inherited property, and gifts claimed as separate property;
- Life-insurance ownership and beneficiaries; and
- Property presently held by Van, the institution, family members, or another third party.

Use the last four digits of account numbers in public filings, not complete account numbers.

Debts

Identify responsibility for:

- Mortgages and home-equity loans;
- Vehicle loans;
- Credit cards and personal loans;
- Medical bills;
- Tax liabilities;
- Student loans;
- Court costs, restitution, fines, prison-account obligations, and attorney fees;
- Debts owed to relatives; and
- Any debt incurred after your separation.

An agreement between you does **not** release either spouse from a creditor’s contract. If a joint debt is assigned to one spouse, include a duty to pay it and indemnify the other. For secured property, address sale or refinancing and what happens if refinancing is impossible.

Retirement benefits

This is a frequent source of problems. The agreement must clearly say either:

- Each spouse keeps all retirement benefits in that spouse’s name and both waive claims to the other’s benefits; or
- A particular plan will be divided according to a precise formula.

If a plan will be divided, a QDRO, DOPO, or other specialized order may be required. Identify who prepares it, who pays for it, and whether gains, losses, loans, and survivor benefits are included. Do not rely on general language such as “retirement will be divided fairly.”

Spousal support

Choose clearly between:

- A permanent mutual waiver, with the court not retaining jurisdiction; or
- A specified support award.

If support will be paid, state:

- Amount and frequency;
- Starting and ending dates;
- Payment method;
- Termination events;
- Whether support is modifiable; and
- Whether the court retains jurisdiction over amount or duration.

A permanent waiver ordinarily cannot be undone merely because one spouse later has financial difficulty.

Taxes and insurance

The agreement should address:

- Filing status for any unresolved tax year;
- Division of refunds and liabilities;
- Cooperation with audits or amended returns;
- Health-insurance responsibility after dissolution;
- Uninsured medical bills incurred before the decree;
- Any continuation coverage; and
- Any required life insurance.

Be cautious about promising that one former spouse can remain on the other's health plan; divorce or dissolution commonly ends spousal eligibility.

If you have minor children

The short child-related clause in the template is **not enough by itself**. You normally need detailed provisions and the court's required parenting and child-support forms covering:

- Whether one parent is residential parent and legal custodian or shared parenting is requested;
- A specific parenting-time schedule;
- Holidays, school breaks, transportation, communication, and exchanges;
- How Van's incarceration affects current parenting time and telephone/video/contact arrangements;
- Child support calculated under the Ohio guidelines;
- Any deviation from guideline support, with facts supporting the deviation;
- Cash medical support;
- Health-insurance responsibility;
- Division of uninsured medical expenses;

- Child-care and extracurricular expenses;
- Tax dependency claims and any required IRS release;
- School and medical-record access;
- Relocation and notice requirements; and
- Any required parenting proceeding affidavit or shared-parenting plan.

The court decides child-related issues according to Ohio law and the children's best interests. The parties cannot simply waive child support without an adequate legal basis and court approval. Van's incarceration may also affect the support calculation, but it should not be assumed that his income is automatically zero.

Incarceration-specific provisions to add if relevant

Consider adding terms addressing:

- How Van will receive or deliver personal property;
- Who may retrieve property on his behalf;
- Deadlines that account for institutional restrictions;
- Communication through permitted prison channels;
- Responsibility for restitution, fines, commissary debt, or other obligations;
- Whether either spouse has authority over the other's prison account or benefits;
- Signing deeds, vehicle titles, or retirement orders through a prison notary; and
- What happens if institutional restrictions prevent compliance by a stated deadline.

Do not give either spouse a deadline that is impossible to meet while incarcerated.

Provisions that should be made more definite

Avoid language such as:

- "We have already divided everything";
- "Each will pay their own debts" without identifying joint debts;
- "The house will go to her" without addressing the deed and mortgage;
- "Retirement will be handled later";
- "Reasonable parenting time" without a workable schedule; or
- "Support is reserved" without specifying the scope and duration of retained jurisdiction.

List each significant item, its recipient, related debt, transfer deadline, and enforcement method. Attach schedules if the lists are long.

Documents required outside the agreement

Even a complete separation agreement does not constitute the entire filing. Depending on your facts and current Cuyahoga County requirements, the packet may also require:

- Joint petition for dissolution;
- Affidavits of income, expenses, property, and debt;
- Confidential personal-identifiers form;

- Health-insurance affidavit;
- Certified marriage record;
- Parenting proceeding affidavit;
- Child-support worksheet and proposed support order;
- Parenting plan or shared-parenting plan;
- Proposed decree of dissolution;
- Case-designation and filing forms;
- Filing fee or poverty affidavit; and
- Motion and proposed order allowing Van to participate remotely.

The financial affidavits must match the agreement. An omitted retirement account, inconsistent debt allocation, or unexplained difference can cause the court to reject or postpone the dissolution.

Bottom line

The template covers the major legal categories, but whether **your completed agreement** covers everything cannot be determined without your actual facts and selected provisions. Before filing, create a complete inventory of both spouses' assets, debts, income, retirement benefits, pending claims, and—if relevant—children's issues. Every item should be expressly awarded, divided, or waived, and all optional sections should be resolved rather than left blank. The court can reject the agreement if it is incomplete, ambiguous, or not fair and equitable.

Ended because: completed (1676 output tokens)